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QUIT CLAIM DEED (Controlled Access)
(Corporation)

I 97-26-A

Portland Cement Company of Utah Grantor, a corporation of the State of Utah, hereby QUIT CLAIMS to the STATE ROAD COMMISSION OF UTAH, Grantee, for the sum of One hundred and thirty-five and no/100 Dollars, the following described tract of land in Salt Lake County, State of Utah, to-wit:

Land for highway known as Project No. I-97 situated in the NE¼ NE¼ of Section 17, T. 1 S., R. 2 E., S.L.M. The boundaries of said tract of land are described as follows:

Beginning on the southeast bank of Parley's Canyon Creek, which is approximately 620 feet west along the north boundary line of said Section 17, from the NE corner of said Section 17; thence West 248 feet, more or less, to a point 150 feet radially distant westerly from the center line of survey of said project; thence southerly 77.5 feet along the arc of an 1105.4 foot radius curve to the left; to a point of curve to spiral (Note: tangent to said curve at its point of beginning bears S. 19°36' W.); thence southerly 258.9 feet along the arc of a spiral to the left which is concentric with and 150 feet radially distant westerly from a 240 foot ten chord spiral for a 6°00' curve; thence S. 8°23' W. 39.2 feet to a point of tangency with a spiral to the right; thence southerly 221.1 feet along the arc of said spiral which is concentric with and 150 feet radially distant westerly from a 240 foot ten chord spiral for a 6°00' curve; thence S. 50°15' W. 215.7 feet; thence S. 11°08' W. 221.7 feet; thence southwesterly 197 feet, more or less, along the arc of the first portion of an end spiral to the right which is concentric with and 150 feet radially distant northwesterly from a 240 foot ten chord spiral for a 6°00' curve, to the west boundary line of said NE¼ NE¼ (Note: tangent to said spiral at its point of beginning bears S. 45°14' W.); thence south 153 feet, more or less, to said southeast bank of Parley's Canyon Creek; thence northeasterly along said creek to the point of beginning as shown on the official map of said project on file in the office of the State Road Commission of Utah. Above described tract of land contains 5.72 acres, more or less, of which 4.37 acres, more or less, are now occupied by the existing highway and the Grantee's property. Balance 1.35 acre, more or less.

The grantors also hereby grant to the grantee permission to locate and construct within the grantors land and outside the limits of the highway right of way all irrigation and/or waste water ditches made necessary by the construction of said project. After the above described ditches are constructed, the grantee is thereafter relieved of all responsibility for the maintenance of said ditches.

Any and all water rights pertaining to the above described land are hereby reserved by the grantor, and the grantee shall not be liable for any water assessments now due or which shall become due.

To enable the grantee to construct and maintain a public highway as an expressway, as contemplated by Chapter 63, Laws of Utah, 1945, the grantor hereby releases and relinquishes to the grantee any and all rights or easements appurtenant to the grantors remaining property by reason of the location thereof with reference to said highway, including, without limiting the foregoing, all rights of ingress to or egress from the grantors remaining property contiguous to the lands hereby conveyed, to or from said highway. EXCEPTING and reserving to the grantor its successors or assigns, the right of access to the nearest roadway of said highway over and across the northerly right of way line for one 20 -foot section, which said section centers at a point directly opposite Highway Engineer's Station 368+20.

IN WITNESS WHEREOF, the said Portland Cement Company has caused this instrument to be executed by its proper officers thereunto duly authorized this 20th day of May, A.D. 1955.

Portland Cement Co. of Utah

By Herbert A. Snow

STATE OF UTAH)
:ss
COUNTY OF Salt Lake)

On this 23rd day of May, A.D. 1955, personally appeared before me, Herbert A. Snow, who, being by me duly sworn says that he is the President of Portland Cement Co. of Utah, a corporation, and that said instrument was signed in behalf of said corporation by authority of Board of Directors, and the said Herbert A. Snow acknowledged to me that said corporation executed the same.

WITNESS my hand and official seal the day and year in this certificate first above written.

My Commission expires: 4/12/59

Allen S. Adams
Notary Public

Prepared by WIN, 11/22/54.

JUN 30 1955

Recorded _____ at 9:27A. m.
Request of State Road Commission
Fee Paid. Hazel Taggart Chase,
Recorder, Salt Lake County, Utah
$ M.R.U. By [illegible] Deputy
Book 1213 Page 252 Ref. _____

442 State Capitol

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